ARB 023/2025 Octavia v Oisin

AUGUST 15, 2025 ARBITRATION - ORDERS

Claim No: ARB 023/2025

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

OCTAVIA

Claimant

and

OISIN

Defendant

ORDER WITH REASONS OF H.E CHIEF JUSTICE WAYNE MARTIN

UPON the Order of H.E. Chief Justice Wayne Martin dated 3 July 2025 (the "Order") granting the Claimant's Application dated 26 June 2025 for the recognition and enforcement of the Final Award dated 25 April 2025

AND UPON reviewing the Statement of Costs filed by the Claimant on 7 July 2025 in the total sum of AED 64,013.33 (the "Claimed Amount")

AND UPON considering Part 38 of the Rules of the DIFC Courts ("RDC") and Practice Direction No. 4 of 2017 (Interest on Judgments)

IT IS HEREBY ORDERED THAT:

1. The Defendant shall pay the Claimant AED 64,013.33 (the "Costs Award").

2. The Costs Award shall be paid within 14 days from the date of this Order, pursuant to RDC 36.34.

3. In the event the Defendant fails to pay the Costs Award within 14 days of this Order, interest shall accrue at the rate of 9% per annum from the date of this Order until full payment is made, in accordance with Practice Direction No. 4 of 2017.

Issued by:

Delvin Sumo

Assistant Registrar

Date of issue: 15 August 2025

At: 11am

SCHEDULE OF REASONS

1. This is a Costs Award pursuant to paragraph 6 of the Order dated 3 July 2025, which granted the Claimant's Application for the recognition and enforcement of the Final Award issued on 25 April 2025.

2. The Statement of Costs dated 7 July 2025 claims a total of AED 64,013.33, comprising professional fees and disbursements, including court fees and service costs.

3. No objection to the Statement of Costs has been filed by the Defendant within the period prescribed.

4. I am satisfied that the hourly rates and time claimed fall within the reasonable range for market practice in enforcement proceedings, and that the total is proportionate to the nature, urgency, and complexity of the Application.

5. In the absence of objection and applying the standard basis of assessment under RDC 38.8 and 38.23, I find that the full amount claimed is reasonable and proportionate.

6. Accordingly, I award the Claimant the whole of the costs claimed, payable within 14 days, with interest accruing thereafter at the rate prescribed in Practice Direction No. 4 of 2017 until full payment.